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Q1)

What do you understand by the Concept "freedom of speech and expression"? Does it cover hate speech also? Why do films in India stand on a slightly different plane from other form of expression?

Discuss.

Answer

Article 19(1)(a) gives freedom of speech and expression.

yet Article 19(2) permits restrictions on grounds of Sovereignty, Public order, decency and morality.

This creates a permanent balance between liberty and limits.

Freedom of speech + Expression

- i) it covers Press freedom, artistic expression, commercial speech and the right to receive information as per *Bennett Coleman vs Union of India* (1973).
- ii) *Maneka Gandhi vs Union of India* (1978) reads Article 19(1)(a) with article 21, requiring every restriction should be just, fair and reasonable.
- iii) In recent times, Supreme Court held Profanity online is not obscenity. It widened the digital and online expression.

Hate Speech

Hate Speech is in General Promotes enmity or hurting religious feelings. Article 19(2) Provides restrictions to speech so that it doesn't affect public order, decency or morality.

Films on Other Plane

- i) Films are seen as medium of mass reach and emotional impact on society.
- ii) This Justifies stricter regulation. The Cinematograph Act (1952) Subjects films to mandatory Pre-approval by CBFC unlike print media which faces only Post-Publication scrutiny.
- iii)  Recently made film "Ghooaskhor Pandat" came in controversy. It was stated that art and cinema cannot defoniate Communities sentiments.

Way forward

- i) State governments need to have protocols so mas

threats do not override CBFC certification and hollow out the rule of law.

ii) Supreme Court can do timely judicial review over expression jurisprudence as the way of expression is evolving as we pass through technology and AI era.

Freedom of expression is most meaningful when its hate speech, harmful cinema are governed by clear law and fearless enforcement and not mob pressure.

Issues of President's delay in commuting death sentences has come under public debate as denial of justice. Should there be a time limit specified for the President to accept/reject such petitions? Analyse. [2014].

Answer

Article 72 (Part V) gives power to President to Pardon, Commute, reprove, remit, etc of a Punishment given by Courts to a Convict.

Commuting Commuting death sentence means converting the death sentence into other less severe Punishments like life ~~and~~ imprisonment.

Delay in Commutation

- (i) There is no time duration specified in Article 72. 20th Law Commission report (2015) flagged the Subcessive and opaque exercise of Article 72 powers as a Systematic inadequacy.
 - (ii) Commuting a death sentence can be influenced by public opinion and political atmosphere.
- eg. Shirgaon case 2012.

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- (ii) Red Tapisim : President sends the mercy plea to Home ministry where the Bureaucratic Procedures consumes lot of time. This adds up to delay.

Delay as Denial of Justice

- (i) Satrughan Chauhan vs Union of India (2014) held that inordinate unexplained delay in deciding a mercy petition entitles commutation of the death sentence.
- (ii) Proturged Suspense during a pending mercy petition violates Article 21.
- (iii) Akshay Kumar Singh vs Union of India (2020) held indefinite waiting on death row constitutes additional punishment not sanctioned by law. It shows delay + compounds the original punishment.

Time limit feasible?

- (i) A fixed time limit is too harsh for a power that touches life itself.

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Do not write anything
in this part.

- (ii) structured Procedure, transparency and judicial oversight can make Article 72 both humane and Constitutionally sound.
- (iii) A dedicated home ministry cell with a public dashboard of pending Petitions would bring transparency without curtailing Presidential discretion.
- (iv) The Law Commission could codify Shatrughan Chauhan Principles into a binding Advisory Framework — ~~if~~ clearly specifying what counts as unreasonable delay.

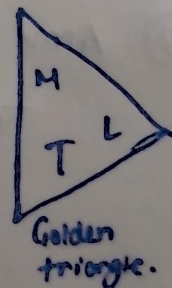
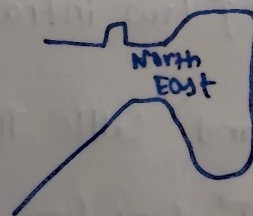
Q3) What are the major challenges to internal security and Peace Process in the North-Eastern states? Map the various Peace accords and agreements initiated by the Government in Past decade.

Answer The Manipur violence and conflict that started in 2023 is now in its fourth year and still there is no resolution.

Major Internal security challenges

① Drug Trafficking

eg Golden triangle
Myanmar,
Thailand,
Laos.



② Ethnic Conflicts

eg Kuki - Meitei - Naga dispute
in Manipur.

③ Insurgent groups

eg NSCN(IM), NSCN(K), ULFA
(assam)

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④ Fake currency infiltration due to porous borders.

eg From Bangladesh & Nepal.

⑤ Illegal immigration.

eg Muslim Bangladeshi immigrants.

Bodo dispute.

⑥ Terrorist group in N-E region.

eg Jamaat-e-Islami

⑦ Low Developmental Projects

eg Low infrastructure leading to more threats.

⑧ Arms and Cattle Trafficking.

eg Arms from Myanmar

Cattle from Bangladesh.

⑨ Traditional Security threats.

eg chicken neck dilemma.

Major peace accords & agreements

① Mizoram Peace Accord (1996) — ended Mizo insurgency.

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② Bodo Peace Accord (2020)

- created Bodoland Territorial region.

③ Karbi Anglong Agreement.

- GOI + Assam Government + other insurgent groups.
- 1000 cr developmental Package.

④ UNLF Peace agreement (Manipur)

- valley based Meitei insurgent Peace agreement.

⑤ Adivasi Peace Accord

- Assam Govt + GOI + Adivasi groups.

⑥ NLFT and TIPRA agreement (2024)

- Tripura

⑦ Madhukar Gupta Committee - report implementation on Layered Border Protection.

⑧ PM DevINE Scheme.

- 100% Centrally funded.

The way forward for North east is whole-of-government approach.